

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 14, 2018

Honorable Ruth Ann Kwan
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012

Re: Rodriguez, George
CDC No.: T96844
Case No.: BA278185
Date of Sentence: 8/22/2005

Dear Honorable Ruth Ann Kwan:

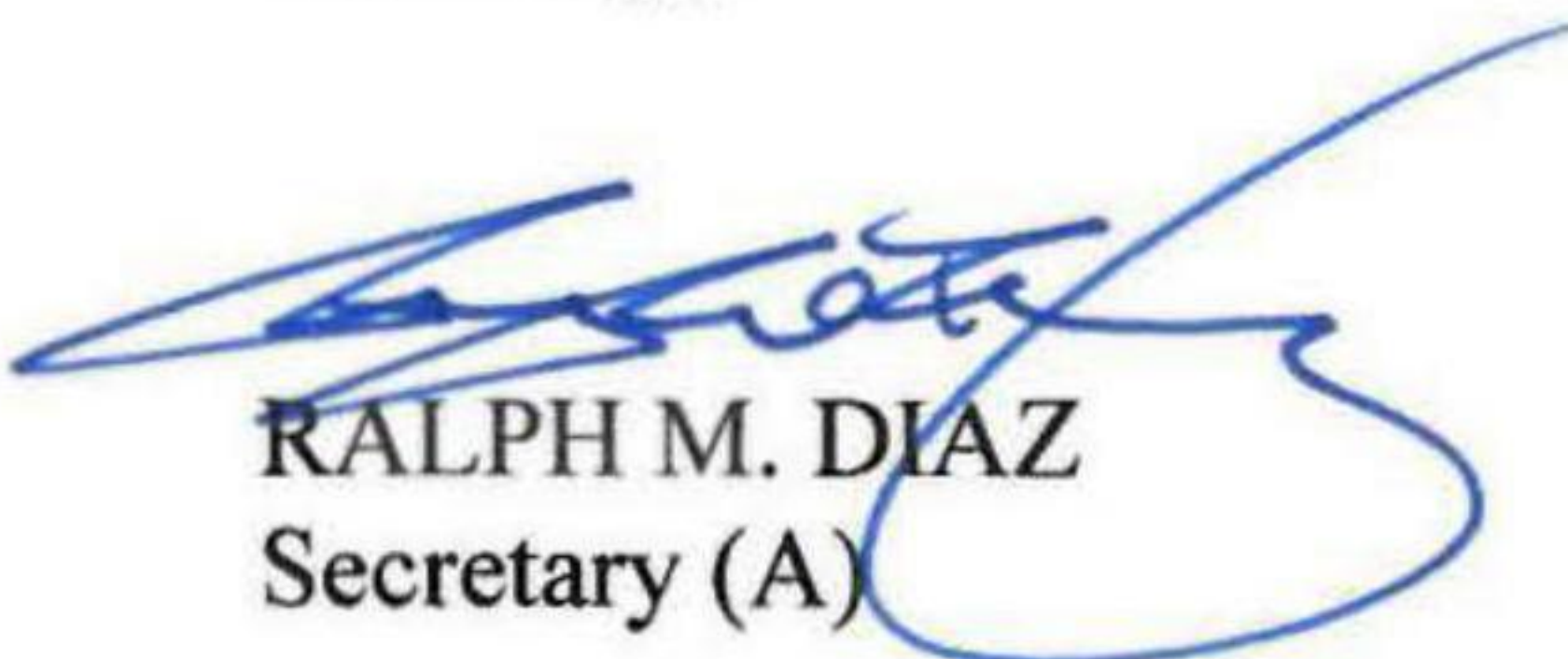
The purpose of this letter is to provide the court with authority to resentence George Rodriguez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rodriguez was sentenced in 2005, and was convicted of section 245, subdivision (A)(1), ASSAULT W/DEADLY WEAPON/INSTR. The trial court sentenced inmate Rodriguez on 8/22/2005. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rodriguez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rodriguez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

OK'D TO GO S/W NOTED
SEP 21 2005

**ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**

[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES			ORIGINAL FILED		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RODRIGUEZ, GEORGE		DOB: 1-25-83	CASE NUMBER BA278185		SEP 19 2005 LOS ANGELES SUPERIOR COURT
AKA: CII#: A12232687 BOOKING #: 8443305		☐ NOT PRESENT	 ENTERED INTO OBIS		
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 8-22-05	DEPT. NO. 115	JUDGE RUTH ANN KWAN			
CLERK S CUYA	REPORTER J MOXHAM	PROBATION NO. OR PROBATION OFFICER X1814655			
COUNSEL FOR PEOPLE J GARDEN		COUNSEL FOR DEFENDANT C R MCREYNOLDS ☐ APPTD.			

1. Defendant was convicted of the commission of the following felony:

CNT.	CODE	SECTION NUMBER	CRIME	COMMITTED	CONVICTION (MO./DATE/YEAR)	JURY	COURT	PLEA	TERM (L, M, Y)	YRS.	MOS.
1	PC	245(A)(1)	ASSAULT WITH DEADLY WEAPON/INSTR	2005	8-22-05			X	M	3	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
1	186.22(B)(1)(C)	10	12022.7(A)	3					13

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. ☐ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

Restitution Fine(s): **\$200.00** per PC 1202.4(b) forthwith per PC 2085.5; **\$200.00** per PC 1202.45 suspended unless parole is revoked.

Restitution per PC 1202.4(f): ☒ **\$2794.26** / ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 7 below.)

Fine(s): \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ CC ☐ CS

Lab Fee: \$_____ per HS 11372.5(a) for counts _____. ☐ Drug Program Fee of \$150 per HS 11372.7(a).

6. TESTING: a. ☐ AIDS pursuant to PC 1202.1 b. ☐ DNA pursuant to PC 296 c. ☐ other (specify):

7. Other orders (specify): **PLUS \$20.00 COURT SECURITY ASSESSMENT PUR 1465.8(A)(1) PC. VICTIM: DAVID COLLINS AS TO COUNT 3. PAROLE OFFICER TO ASCERTAIN VICTIM RESTITUTION AS TO VICTIM IN COUNT 1 IF ANY. PROVIDE TWO SPECIMENS OF BLOOD, SALIVA SAMPLE, RT THUMB PRINT, AND FULL PALM PRINT IMPRESSION OF EACH HAND FOR LAW ENFORCEMENT IDENTIFICATION ANALYSIS.**

8. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **16**

9. ☐ This sentence is to run concurrent with (specify):

10. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
c. ☐ after revocation of probation.

11. DATE SENTENCE PRONOUNCED 8-22-05	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS: 232 INCLUDING:	ACTUAL LOCAL TIME 202	LOCAL CONDUCT CREDITS 30	☐ 4019 ☐ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH CDC CRC
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12. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE L. KENDALL 	DATE 9-19-05
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This form is prescribed under PC 1213.6 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be filed with this form.

